

24VECV02023 24VECV02023

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-06-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C06%2F25%2F2026

Source SHA-256: 8c09082970fb06243b4bddcdacff033864b47a597a2aa019633e2a1aa49851dd

Case Number: 24VECV02023 Hearing Date: June 25, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Andrea Ross Enoch, et al.,

Plaintiff,

v.

Sherman

Oaks Hospital, et al.

Defendant.

Case Number Department

107

COURT'S [Tentative] ORDER RE:

Motion to Enforce Settlement

[THE
FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.
BACKGROUND

On
May 1, 2024, Plaintiffs Andrea Ross Enoch, individually as
successor-in-interest for the Estate of Brian Enoch, Adrian Enoch, Ryan Enoch,
Cassidy Enoch, and Justine Madara ("Plaintiffs") filed a complaint against
Defendants Sherman Oaks Hospital, Berj Dermendjian, D.O., Robert Moghimi, M.D.,
Epic Medical Group, and Does 1 through 300, alleging causes of action for: (1)
wrongful death based on medical malpractice (CCP section 377.60); (2)
negligence – Thing v. LaChusa; and (3) medical malpractice through a
survival action (CCP section 377.20).

On
November 22, 2024, Plaintiffs filed an amendment to complaint identifying Doe
201 as North Valley GI Consultants.

On
May 8, 2025, Plaintiffs filed a request to dismiss Defendant North Valley GI
Consultants (Doe 201) and that Defendant was dismissed.

On
April 1, 2026, Plaintiffs filed a request to dismiss Defendant Dr. Berj
Dermendjian, D.O., and that Defendant was dismissed.

On
April 17, 2026, Plaintiffs filed a request to dismiss Defendant Robert Moghimi,
M.D. and that Defendant was dismissed.

On
April 28, 2026, Plaintiffs filed a notice of settlement of entire case.

On
May 29, 2026, Plaintiffs filed a motion to enforce the settlement agreement
(the "Motion"). On June 11, 2026, Defendant Prime

Healthcare Services – Sherman Oaks LLC dba Sherman Oaks Hospital (“Defendant”) filed an opposition. On June 17, 2026, Plaintiffs filed a reply.

II.

LEGAL

STANDARD

Code

of Civil Procedure section 664.6, subdivision (a) states:

If parties to pending

litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

III.

DISCUSSION

Plaintiffs

and Defendant entered a settlement agreement on March 31, 2026 (the “Settlement Agreement”). (Podgurski Declaration ¶ 3.) Plaintiffs move for an order enforcing the Settlement Agreement pursuant to Code of Civil Procedure section 664.6, entering judgment against Defendant in the sum of \$500,000, awarding prejudgment interest, and awarding contractual attorneys’ fees and costs in the sum of \$8,165.75. (Motion pp. 2, 9.)

In

opposition, Defendant argues the Motion is moot because the settlement check was delivered to Plaintiffs’ counsel’s office on June 4, 2026. (Opposition pp. 3-4.)

In

reply, Plaintiffs state they received the settlement funds. (Reply p. 2.) Plaintiffs argue they are still entitled to attorneys’ fees because Defendant failed to timely pay the settlement funds and Defendant cites no “case law

holding that attorneys fees may be denied under a valid contractual provision because the payment 'took longer than expected'." (Reply pp. 2-3.)

The

parties agree Defendant paid the settlement funds on June 4, 2026. (Reply p. 2; Opposition p. 3.) The only dispute remaining relates to attorneys' fees and costs.

The

Settlement Agreement contains an attorneys' fees provision, stating: "If there is any litigation to enforce the Release or any of its terms, the prevailing party is entitled to reasonable attorney's fees and costs from the losing party." (Podgurski Declaration Ex. 1 pdf p. 9.)

Defendant

argues the court should deny Plaintiffs' request for fees because although "the payment of settlement funds took longer than expected" Defendant's counsel "continued to communicate with Plaintiffs' Counsel regarding the delay and providing assurances that the settlement funds would be sent to Plaintiffs' Counsel immediately upon receipt." (Opposition p. 4.) Defendant also argues the court should not award Plaintiffs costs and fees because Defendant "cooperated in good faith throughout the case and settlement process." (Opposition p. 4.)

Defendant

does not dispute it failed to timely deliver payment to Plaintiffs under the Settlement Agreement. It is irrelevant that Defendant's counsel remained in contact with Plaintiffs' counsel. Further, the attorneys' fees and costs clause contains no exception for cooperating in good faith.

However,

Defendant paid Plaintiffs the settlement funds. Plaintiffs cite no authority suggesting Plaintiffs are entitled to attorneys' fees and costs, despite the Motion being moot. Plaintiffs' reply also lacks analysis as to why Plaintiffs are entitled to attorneys' fees and costs under the attorneys' fees and costs clause when the underlying issue is moot.

The

Motion is moot because Defendant paid Plaintiffs the settlement funds. There is no prevailing or losing party here, so costs and fees are not warranted.

IV.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: June

25, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court